

HOW TO GET DIVORCED IN ILLINOIS

*THIS IS NOT LEGAL ADVICE AND I AM NOT YOUR LAWYER
HIRE AN ATTORNEY IF YOU HAVE LEGAL QUESTIONS.*

1. File a Petition for Dissolution of Marriage

A “Petition” is a legal filing requesting that the court dissolve the marriage. It must meet certain legal requirements like stating when the marriage took place and whether or not you have children together.



2. Litigate and/or Negotiate as Needed

This is the biggest unknown in any divorce. Both parties have the right to make motions to the court, and any specific motion could take weeks or months to conclude. If there are children, the Court may appoint a neutral party (another attorney) to investigate what is the “best interest” of the child.



3A. Settle

The parties have agreed to the terms of the Judgment for Dissolution, the Marital Settlement Agreement, and the Allocation Judgment (see below).

3B. Trial

The parties cannot agree and so each present their evidence and arguments to the Judge and the Judge decides. (very expensive)



Judgment of Dissolution of Marriage (“JDM”)

- Finalizes Divorce
- References and Incorporates the MSA/AJ
- Permission to Change Name (if needed)

Marital Settlement Agreement (“MSA”)

- Details of Property Division
- Maintenance (“Alimony”) Payments (if applicable)
- Child Support (if children)
- All Financial Issues

Allocation of Parental Responsibilities (“Allocation Judgment”)

- Defines Parenting Time
- Parental Rights and Duties
- Child’s

IN ILLINOIS, ALL DIVORCES CONCLUDE WITH TWO COURT ORDERS: THE “JDM” AND THE “MSA”
IF THERE ARE CHILDREN, THERE WILL ALSO BE AN ALLOCATION JUDGMENT